

7. In this Act the following expressions have the following Interpretation. meanings:—

- “local authority”, as respects England and Wales, means the council of a county borough or a county district, the council of a metropolitan borough, or the Common Council of the City of London, and, as respects Scotland, means a county or town council;
- “hire-purchase agreement”, as respects England and Wales, has the same meaning as in the Hire-Purchase Act, 1938, 1 & 2 Geo. 6. and, as respects Scotland, means a contract to which the c. 53. Hire Purchase and Small Debt (Scotland) Act, 1932, 22 & 23 Geo. 5 applies or would apply if the appliance forming the c. 38. subject of the contract did not exceed twenty pounds in value; and, as respects Scotland, references to letting under a hire-purchase agreement and to a hirer under such a letting shall include references to an agreement to sell under a contract to which the said Act of 1932 applies and to a purchaser under such an agreement respectively.

8.—(1) This Act may be cited as the Heating Appliances Short title, (Fireguards) Act, 1952. commence-
ment and
extent.

(2) This Act shall come into operation on such day as the Secretary of State may by order appoint.

(3) This Act shall not extend to Northern Ireland.

CHAPTER 43

Disposal of Uncollected Goods Act, 1952

ARRANGEMENT OF SECTIONS

Section

1. Right of bailees to sell goods accepted for repair or other treatment but not re-delivered.
2. Notices.
3. Procedure after sale.
4. Supplemental provisions.
5. Special provisions applicable to certain cases of goods accepted before the commencement of this Act.
6. Application to Scotland.
7. Short title and extent.

An Act to authorise the disposal of goods accepted in the course of a business for repair or other treatment but not re-delivered; and for purposes connected therewith. [1st August, 1952.]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Right of
bailees to sell
goods accepted
for repair or
other treatment
but not
re-delivered.

1.—(1) This Act shall apply in relation to the bailment of any goods accepted (whether before or after the commencement of this Act) by the bailee, in the course of a business, for repair or other treatment on the terms (express or implied) that they will be re-delivered to the bailor or in accordance with the bailor's directions when the repair or other treatment has been carried out and on payment to the bailee of such charges as may be agreed between the parties or as may be reasonable.

(2) Where goods accepted as aforesaid are ready for re-delivery but the bailor fails both—

(a) to pay or tender to the bailee his charges in relation to the goods; and

(b) to take delivery of the goods or, if the terms of the bailment so provide, to give directions as to their delivery,

the bailee shall, subject to the provisions of any agreement between him and the bailor and to the following provisions of this Act, be entitled, while the failure continues, to sell the goods.

(3) The bailee shall not be entitled by virtue of the last foregoing subsection to sell goods accepted by him for repair or other treatment unless the following provisions are complied with, that is to say:—

(a) at all premises used or appropriated by the bailee for accepting for repair or other treatment goods of the class to which the goods accepted belong, there is, at the time of the acceptance (whether or not the goods are accepted at any such premises), conspicuously displayed in the part of the premises so used or appropriated a notice indicating that the acceptance by the bailee of goods of that class for repair or other treatment is subject to the provisions of this Act and that this Act confers on the bailee a right of sale exercisable in certain circumstances after an interval of not less than twelve months from the date on which the goods are ready for re-delivery;

- (b) after the goods are ready for re-delivery, or after the commencement of this Act, whichever is the later, the bailee gives to the bailor a notice that the goods are ready for re-delivery, being a notice complying with the requirements of subsection (7) of this section;
- (c) after the expiration of the period of twelve months beginning with the date of the giving of the notice that the goods are ready for re-delivery and not less than fourteen days before the sale of the goods, the bailee gives to the bailor a notice of his intention to sell the goods, being a notice complying with the requirements of the said subsection (7),

and the bailee shall not be so entitled to sell the goods in a lot in which goods not accepted by him from the bailor are included or to sell them otherwise than by public auction:

Provided that—

- (i) paragraph (a) of this subsection shall not apply in relation to any goods accepted before the commencement of this Act for repair or other treatment;
- (ii) where the notice of the bailee's intention to sell the goods states, in addition to the matters required to be contained therein by the said subsection (7), the lowest price which he is prepared to accept on a sale of the goods by virtue of this section, he may sell the goods for not less than that price otherwise than by public auction.

(4) Where, at any time before the giving of the notice of the bailee's intention to sell the goods, a dispute arises between the bailor and the bailee by reason of the bailor's refusal to pay the sum which the bailee claims to be due to him by way of his charges in relation to the goods, or to take delivery thereof or give directions as to their delivery, on the ground that the charges are excessive or that the bailor is not satisfied that the repair or other treatment of the goods has been properly carried out, the bailee's right to sell the goods shall be suspended until the dispute is determined.

(5) Without prejudice to any other mode of determining a dispute, it shall be treated for the purposes of this Act as having been determined if the bailee, at any time after the dispute has arisen, gives to the bailor a notice (hereafter in this Act referred to as a "notice to treat the dispute as determined")—

- (a) stating that unless, within the period of one month beginning with the date of the giving of the notice, the bailor objects thereto, the dispute will be treated for the purposes of this Act as having been determined; and
- (b) in other respects complying with the requirements of subsection (7) of this section,

and within the said period of one month the bailor does not

object to the notice; and where the dispute is so treated as having been determined, the date on which it shall be so treated as having been determined shall be the date of the giving of the notice.

(6) Where a dispute in relation to any goods is determined (whether by virtue of the last foregoing subsection or otherwise), subsection (3) of this section shall have effect in relation to those goods as if paragraph (b) thereof were omitted and as if for the reference in paragraph (c) thereof to the date of the giving of the notice that the goods are ready for re-delivery there were substituted a reference to the date on which the dispute is determined.

(7) A notice required or authorised by this section to be given by the bailee to the bailor must contain a sufficient description of the goods to which the notice relates and a statement of the sum which the bailee claims to be due to him by way of his charges in relation to the goods, together with—

(a) in the case of a notice that the goods are ready for re-delivery or a notice to treat the dispute as determined, a statement that if the bailor fails, within the period of twelve months beginning with the date of the giving of the notice, both to pay the said sum and to take delivery of the goods or give directions as to their delivery they are liable to be sold in accordance with the provisions of this Act;

(b) in the case of a notice of the bailee's intention to sell the goods, a statement of the date of the giving of the notice that the goods are ready for re-delivery or, where there has been a dispute between the bailor and bailee, the date on which the dispute was determined, and a statement that if the bailor fails, within the period of fourteen days beginning with the date of the giving of the notice of the bailee's intention to sell the goods, both to pay the said sum and to take delivery of the goods or give directions as to their delivery they are liable to be sold in accordance with the provisions of this Act.

Notices.

2.—(1) In this Act the expression “notice” means a notice in writing.

(2) A notice required or authorised by this Act to be given by a bailee to a bailor shall, where the bailor is a corporation, be duly given if it is given to the secretary or clerk of the corporation.

(3) A notice required or authorised by this Act to be given by a bailee to a bailor of the bailee's intention to sell the goods shall be given by sending it by post in a registered letter.

(4) A notice required or authorised by this Act to be given by a bailee to a bailor, other than a notice of the bailee's intention to sell the goods, may be given either—

- (a) by delivering it to the bailor; or
- (b) by leaving it at his proper address; or
- (c) by post.

(5) For the purposes of this section, and of section twenty-six of the Interpretation Act, 1889, in its application to this section, ^{52 & 53 Vict. c. 63.} the proper address of a person to whom a notice falling within the provisions of subsection (3) or (4) of this section is required or authorised to be given shall, in the case of the secretary or clerk of a corporation, be that of the registered or principal office of the corporation, and, in any other case, be the last known address of the person to whom the notice is to be given.

3.—(1) Where goods are sold by virtue of the provisions of this Act, any amount by which the gross proceeds of the sale exceed the charges of the bailee in relation to the goods shall be recoverable by the bailor from the bailee and any amount by which the said charges exceed the gross proceeds of the sale shall be recoverable by the bailee from the bailor. ^{Procedure after sale.}

(2) Where goods are so sold, the bailee shall, before the expiration of the period of seven days beginning with the date of the sale of the goods, prepare a record in relation to the goods containing the following particulars, that is to say—

- (a) a sufficient description of the goods;
- (b) the method, date and place of the sale;
- (c) where the goods are sold by public auction, the name and principal place of business of the auctioneer, and where they are sold otherwise than by public auction and the gross proceeds of the sale thereof are not less than twenty shillings, the name and address of the buyer;
- (d) the amount of the gross proceeds of the sale; and
- (e) a statement of each item of the charges of the bailee in relation to the goods and the transaction to which each item relates,

and shall, during the period of six years beginning with the date on which the record is prepared, keep the record together with a copy of the notice of the bailee's intention to sell the goods and the certificate of posting of the letter in which the notice was sent, and shall at any reasonable time during the said period of six years, if so requested by or on behalf of the bailor, produce the record, copy and certificate, or any of them, for inspection by the bailor or a person nominated in that behalf by him.

(3) A person who fails to comply with the provisions of the last foregoing subsection or who produces a document kept for the purposes thereof which is to his knowledge false in a material

particular shall be liable on summary conviction to a fine not exceeding one hundred pounds or to imprisonment for a term not exceeding three months or to both.

Supplemental
provisions.

4.—(1) References in this Act to goods accepted by a bailee in the course of a business for repair or other treatment shall, in relation to goods of any class, be construed as references to goods of that class accepted by him for repair or other treatment in the course of a business consisting of or comprising the acceptance by him of goods of that class for repair or other treatment (whether or not the repair or other treatment is effected by him) wholly or mainly from persons who deliver to him, otherwise than in the course of a business, goods of that class for repair or other treatment.

(2) References in this Act to the charges of the bailee in relation to any goods shall, subject to the provisions of any agreement between the bailor and the bailee, be construed as references to the amount agreed between them as the charge for the repair or other treatment of the goods or, if no amount has been so agreed, a reasonable charge therefor and, in a case where the goods have been sold, the following additional amounts that is to say—

(a) a reasonable charge for storing the goods during the period beginning with the date of the giving of the notice that the goods are ready for re-delivery, or, where there has been a dispute between the bailor and bailee, the date on which the dispute was determined, and ending with the date of the sale;

(b) any costs of or in connection with the sale; and

(c) the cost, if any, of insuring the goods.

(3) References in this Act to a bailor or bailee of goods shall, as respects a period during which his rights and obligations in relation to the goods are vested in any other person, be construed as references to that other person.

(4) The powers conferred on a bailee by this Act shall be in addition to and not in derogation of any powers exercisable by him independently of this Act.

Special
provisions
applicable
to certain
cases of goods
accepted
before the
commencement
of this Act.

5.—(1) Where the bailee of goods accepted before the commencement of this Act for repair or other treatment does not at the commencement of this Act know any address of the bailor, the bailee shall not be disentitled to sell the goods by reason only that paragraphs (b) and (c) of subsection (3) of section one of this Act are not complied with, if the following provisions are complied with, that is to say—

(a) within the period of one month beginning with the commencement of this Act, the bailee publishes in a newspaper circulating in the locality where the goods

were accepted for repair or other treatment a notice complying with the requirements of subsection (4) of this section;

- (b) at all premises used or appropriated by the bailee after the commencement of this Act for accepting for repair or other treatment goods of the class to which the goods so accepted belong, there is, throughout the period of twelve months immediately following the expiration of the said period of one month or throughout that portion of the said period of twelve months during which the premises are so used or appropriated, conspicuously displayed in the part of the premises so used or appropriated a notice indicating that, in the case of goods of that class accepted before the commencement of this Act for repair or other treatment, this Act confers on the bailee a right of sale exercisable in certain circumstances after an interval of not less than thirteen months from the commencement of this Act;

but the bailee shall not be entitled to sell the goods before the expiration of the period of thirteen months beginning with the commencement of this Act.

(2) Where the provisions of the last foregoing subsection are complied with in relation to any goods, the bailee shall, notwithstanding anything in subsection (3) of section one of this Act, be entitled to sell them otherwise than by public auction, and paragraph (ii) of the proviso to the said subsection (3) shall not apply in relation to those goods.

(3) Where goods are sold by virtue of the fact that the foregoing provisions of this section have been complied with, the foregoing sections of this Act shall have effect in relation to the goods subject to the following modifications, that is to say—

- (a) for any reference in subsection (2) of section three to a copy of the notice of the bailee's intention to sell the goods and the certificate of posting of the letter in which the notice was sent there shall be substituted a reference to a statement of the name and issue of the newspaper in which the notice under paragraph (a) of subsection (1) of this section was published;
- (b) for the reference in paragraph (a) of subsection (2) of section four to the giving of the notice that the goods are ready for re-delivery there shall be substituted a reference to the publication of the notice under paragraph (a) of subsection (1) of this section.

(4) A notice under paragraph (a) of subsection (1) of this section in relation to any goods must contain—

- (a) a sufficient description of the class to which the goods belong;

- (b) the name under which the bailee carries on the business consisting of or comprising the acceptance of goods of that class for repair or other treatment and the address of the bailee's principal place of business or, where the bailee is a corporation, the registered or principal office of the corporation, and if the name or the address have changed during the twelve months immediately preceding the date of the publication of the notice, the last such name or, as the case may be, the last such address preceding the change thereof; and
- (c) a statement that if the bailor of the goods fails within the period of thirteen months beginning with the commencement of this Act both to pay the sum which the bailee claims to be due to him by way of his charges in relation to the goods and to take delivery of the goods or give directions as to their delivery they are liable to be sold in accordance with the provisions of this Act.

(5) Where the bailee of goods accepted before the commencement of this Act for repair or other treatment does not at the commencement of this Act know any address of the bailor and at any time during the period of thirteen months beginning with the commencement of this Act a dispute arises between the bailor and the bailee by reason of either or both of the matters mentioned in subsection (4) of section one of this Act, the foregoing provisions of this section shall not apply in relation to the goods, but the foregoing sections of this Act shall apply in relation thereto as they apply in a case where a dispute arises between the bailor and the bailee before the giving of the notice of the bailee's intention to sell the goods.

Application to
Scotland.

6. This Act shall apply to Scotland subject to the following modifications, that is to say, for any reference to the bailment of goods there shall be substituted a reference to the deposit of goods, and for references to the bailor and to the bailee in relation to any goods there shall be substituted respectively references to the person by whom and to the person with whom the goods are deposited.

Short title and
extent.

7.—(1) This Act may be cited as the Disposal of Uncollected Goods Act, 1952.

(2) This Act shall not extend to Northern Ireland.

